

M/s Rudransh Hotel and Resorts v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 18 December 2025 · WRIT-C No. 11910 of 2025 · **Writ disposed; petitioner to complete indemnity and charges; licensee to decide in two weeks.**

HEADNOTE

A lessee's writ for mandamus to release a 33 kW commercial connection without the landlord's NOC was disposed of on the licensee's statement that it would give a fresh connection if an indemnity bond, charges and other formalities were completed. The Court allowed ten days for those steps and directed the Executive Engineer to take an appropriate decision within two weeks thereafter. It did not order release of the connection or hold that an owner's NOC is unnecessary.

FACTUAL SUMMARY

The petitioner runs Hotel Palatial at Gomti Nagar, Lucknow, on premises leased from respondent no.4 by a registered lease dated 22 October 2024, which permits an independent electricity connection. It applied for a 33 kW commercial connection. MVVNL's Electricity Urban Distribution Division insisted on the landlord's NOC and said a central-point meter stood installed, whereas a multi-point meter was needed for a separate supply. The petitioner sought mandamus to release the connection without the owner's NOC, and daily compensation under section 43 of the Electricity Act, 2003.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupier-indemnity-new-connection

HOLDING

Where the licensee is willing to release a fresh connection to a lessee on completion of an indemnity bond, charges and other formalities, the Court will not mandamus release or waive the owner's NOC, but will allow a short time for those steps and direct the licensee to take an appropriate decision thereafter. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER AN OWNER'S NOC IS A CONDITION OF RELEASING A TENANT'S INDEPENDENT CONNECTION

¶ 3

NOT DECIDED — WHETHER A CENTRAL-POINT METER BARS A SEPARATE MULTI-POINT CONNECTION

¶ 3

NOT DECIDED — COMPENSATION UNDER SECTION 43 OF THE ELECTRICITY ACT, 2003 FOR DELAY IN RELEASING THE CONNECTION

¶ 2